

Consitution of India

The Indian Constitution is the supreme law of India that establishes the framework of government - defines the powers and responsibilities of its institutions, and guarantees the rights and duties of its citizens.

"Constitution of India is a living document."

Key Dates

- Adopted: November 26, 1949, by the Constituent Assembly.
- Came into Force: January 26, 1950, a day celebrated annually as Republic Day.
- Time to Draft: 2 years, 11 months, and 17 days.

Characterestics

- It is the longest written constitution in the world.
- It originally had 395 articles, 22 parts, and 8 schedules.
- Today, it includes over 440 articles, 25 parts, and 12 schedules due to various amendments.

Historical Background

- India was under British colonial rule for nearly two centuries.
- Indians increasingly demanded self-government, representation and political rights.
- The freedom movement played a major role in shaping constitutional ideals.

Influence of the Freedom Movement

The freedom struggle was not only a struggle for independence.

It also shaped ideas about:

- Democracy
- Justice
- Equality
- Liberty
- Social reform
- Rights of citizens



Constituent Assembly

- The body formed to draft the Constitution of India.
- It represented the diverse political and social interests of India.
- Constituted in 1946.
- It initially had 389 members
- After Partition, its strength was reduced to 299 members.

Key Personalities

- Dr. Rajendra Prasad– President of the Constituent Assembly
- Dr. B. R. Ambedkar– Chairman of the Drafting Committee
- Jawaharlal Nehru
- Sardar Vallabhbhai Patel



How did it Work ?

- The Assembly worked through committees and detailed debates.
- Constitutional proposals were discussed, modified and voted upon.
- Different viewpoints were considered before reaching consensus.
- The Drafting Committee converted the decisions into the draft constitutional text.

Important Milestones

- 1946 – Constituent Assembly formed
- 29 August 1947 – Drafting Committee constituted
- 26 November 1949 – Constitution adopted
- 26 January 1950 – Constitution came into force





Philosophical Foundations of the Constitution

Key Values

- Justice: Social, economic, and political equity guaranteed through Fundamental Rights and Directive Principles.
- Liberty: Freedom of thought, expression, belief, faith, and worship.
- Equality: Equal status and opportunity for every citizen, removing social discrimination based on caste, religion, or gender.
- Fraternity: A sense of common brotherhood ensuring the dignity of the individual and the unity and integrity of the nation.

PREAMBLE

WE, THE PEOPLE OF INDIA,
having solemnly resolved to constitute India into a
SOVEREIGN SOCIALIST
SECULAR DEMOCRATIC REPUBLIC
and to secure to all its citizens :
JUSTICE, social, economic and political;
LIBERTY of thought, expression,
belief, faith and worship;
EQUALITY of status and of opportunity;
and to promote among them all
FRATERNITY assuring the dignity of the
individual and the unity and
integrity of the Nation;
IN OUR CONSTITUENT ASSEMBLY
this twenty-sixth day of November, 1949, do
HEREBY ADOPT, ENACT AND GIVE TO
OURSELVES THIS CONSTITUTION.

Preamble of the Constitution

Core Ideals



Sovereignty

Supreme and independent political authority rests with the people of India, not any external power.

Socialism

Commitment to a welfare state that reduces wealth gaps and ends exploitation, blending democratic goals.

Secularism

Equal respect for and protection of all religions by the state, with no official or preferred state religion.

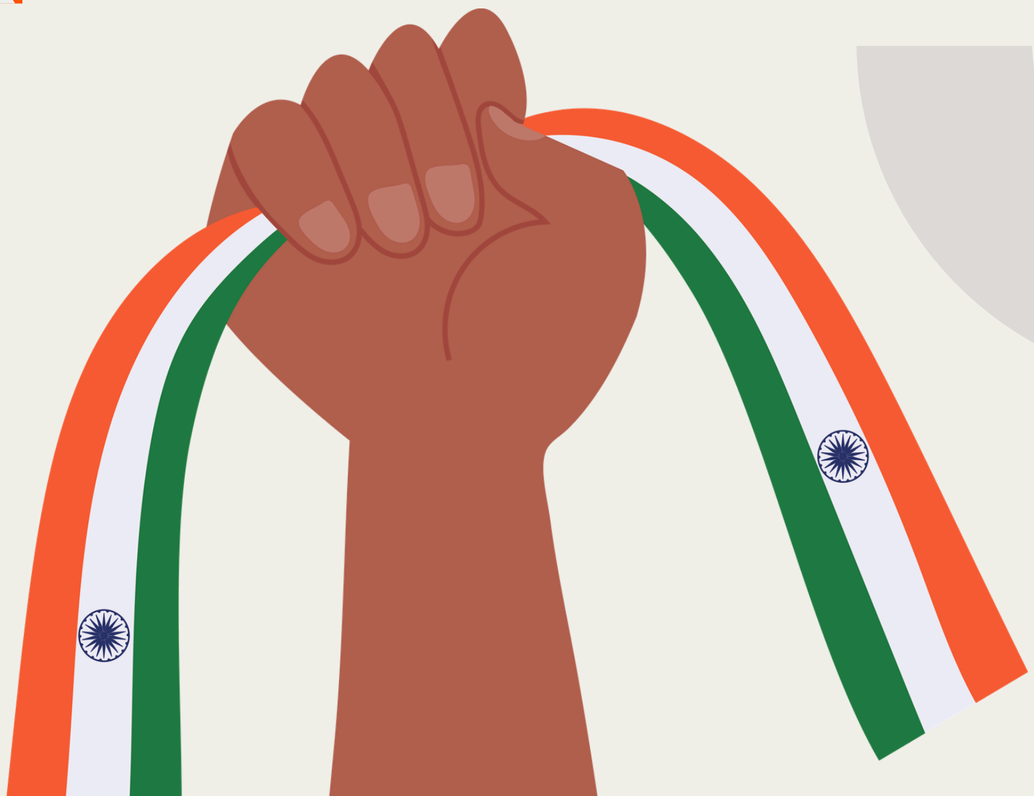
Democracy

Governance based on the consent of the governed, universal adult suffrage, and accountable institutions.

Republic

The head of state is elected by the people rather than holding a hereditary position

Fundamental Rights



1. Right to Equality

Equality before law and prohibition of discrimination.

2. Right to Freedom

Freedom of speech and expression, movement, residence, occupation, etc.

3. Right against Exploitation

Prohibits human trafficking, forced labour and child labour in certain forms.

4. Right to Freedom of Religion

Freedom to profess, practise and propagate religion.

5. Cultural and Educational Rights

Protects the language, culture and educational interests of minorities.

6. Right to Constitutional Remedies

Right to approach the courts for enforcement of Fundamental Rights.

Fundamental Duties

1. Respect the Constitution, National Flag and National Anthem.
2. Cherish the ideals of the freedom struggle.
3. Uphold and protect the sovereignty, unity and integrity of India.
4. Defend the country and render national service when required.
5. Promote harmony and brotherhood and respect the dignity of women.
6. Preserve India's rich cultural heritage.
7. Protect and improve the natural environment and show compassion for living creatures.
8. Develop scientific temper, humanism and the spirit of inquiry and reform.
9. Safeguard public property and reject violence.
10. Strive for excellence in all spheres of individual and collective activity.
11. Provide educational opportunities to children aged 6–14 years (for parents/guardians).

Citizenship

- Citizenship refers to the legal status of a person as a member of a particular country.
- India follows the principle of single citizenship — there is only Indian citizenship, not separate State citizenship.
- Parliament has the power to make laws regarding the acquisition and termination of citizenship



Ways to Acquire

- By Birth
- By Descent
- By Registration
- By Naturalisation
- By Incorporation of Territory

Ways to Acquire Citizenship

By Birth

A person may become an Indian citizen because they are born in India, subject to the legal conditions applicable to their date of birth.

Example: A child born in India may acquire Indian citizenship depending on the citizenship status of the parents and the law applicable at that time.

By Descent

A person born outside India may become an Indian citizen through an Indian parent, subject to legal conditions.

Example: A child born in the USA to an Indian citizen parent may acquire Indian citizenship by descent, subject to the required conditions.

By Registration

Certain people who have a qualifying connection with India can apply to become citizens through registration.

Example: A person of Indian origin who meets the prescribed requirements may apply for citizenship by registration.

By Naturalisation

A foreign national may become an Indian citizen after living in India for the required period and meeting other legal conditions.

Example: A foreigner who has legally lived in India for the prescribed period and satisfies the requirements may apply for citizenship by naturalisation.

By Incorporation of Territory

When a new territory becomes part of India, the Government may specify who among its residents will become Indian citizens.

Example: When a territory is incorporated into India, its residents may acquire Indian citizenship according to the provisions made for that territory.

Constitutional Remedies

- It gives individuals the right to approach the courts when their Fundamental Rights are violated.
- The Supreme Court and High Courts can issue special orders called writs

01 Habeas Corpus →
Protects a person from unlawful detention.
Example: A person is illegally detained → the court can order that the person be brought before it.

02 Mandamus →
Orders a public authority to perform a legal duty.
Example: An authority refuses to perform a duty required by law → the court can direct it to act.

03 Prohibition →
Prevents a lower court or tribunal from exceeding itsjurisdiction.
Example: A court starts hearing a case that it has no authority to hear → a higher court can stop the proceedings.

04 Certiorari →
Allows a higher court to quash an order of a lower court or tribunal when it has acted beyond its legal authority or committed a legal error.

05 Quo Warranto →
Questions a person's legal authority to hold a public office.
Example: If someone occupies a public post without fulfilling the required qualifications, the court can question their authority to hold it.



President of India

- The President is the constitutional head of the Union and the Head of the State.
- The President is the formal executive authority of India.
- The President is elected indirectly– not directly by the people.
- Term – 5 years
- President → resigns to → Vice–President.

Election

Elected by an Electoral College consisting of:

–Elected members of both Houses of Parliament

–Elected members of State Legislative Assemblies

–Elected members of the Legislative Assemblies of Delhi and Puducherry (Why Delhi & Puducherry ?)

Vice President of India

Election

- Elected indirectly by the members of: Lok Sabha & Rajya Sabha
- Both elected and nominated members of Parliament can vote.
- Members of State Legislative Assemblies DO NOT participate in the Vice-Presidential election.



- The Vice-President is the second-highest constitutional office in India.
- The Vice-President is the ex-officio Chairman of the Rajya Sabha.
- The Vice-President acts as President when the office of President is vacant
- Term – 5 years
- Resignation is submitted to the President.

Assertion (A): Fundamental Rights are justiciable.

Reason (R): Citizens can approach courts when their Fundamental Rights are violated.

A. Both A and R are true, and R correctly explains A.

B. Both A and R are true, but R does not explain A.

C. A is true, but R is false.

D. A is false, but R is true.

Answer : A

A public authority refuses to perform a duty that it is legally required to perform. Which writ may be issued by a court directing the authority to perform that duty?

A. Habeas Corpus

B. Certiorari

C. Mandamus

D. Quo Warranto

Answer: C. Mandamus

Why are Fundamental Rights important in a democracy?

A. They give unlimited power to the government.
B. They protect individuals and place constitutional limits on State power.
C. They eliminate the need for courts.
D. They apply only to elected representatives.

Answer: B

Which pair is correctly matched?

A. Habeas Corpus – Public office
B. Mandamus – Unlawful detention
C. Quo Warranto – Right to hold public office
D. Prohibition – Religious freedom

Answer: C

A government official refuses to perform a duty that they are legally required to perform. Which writ can direct the official to perform the duty?

A. Habeas Corpus
B. Mandamus
C. Certiorari
D. Quo Warranto

Answer: B

A linguistic minority wants to preserve its language and culture and establish educational institutions for this purpose. Which Fundamental Right is most relevant?

A. Right to Freedom
B. Cultural and Educational Rights
C. Right to Equality
D. Right against Exploitation

Answer: B

Choose the correct option for each question

A. Both Assertion and Reason are true, and Reason correctly explains the Assertion.
B. Both Assertion and Reason are true, but Reason does not correctly explain the Assertion.
C. Assertion is true, but Reason is false.
D. Assertion is false, but Reason is true.

Assertion: The Right to Freedom of Religion allows individuals to freely practise and profess their religion.

Reason: India follows a system in which the State does not establish an official religion and respects religious freedom.

Answer: A

Choose the correct option for each question

A. Both Assertion and Reason are true, and Reason correctly explains the Assertion.
B. Both Assertion and Reason are true, but Reason does not correctly explain the Assertion.
C. Assertion is true, but Reason is false.
D. Assertion is false, but Reason is true.

Assertion: Fundamental Rights do not mean that an individual can exercise every freedom without any limitation.

Reason: The exercise of certain freedoms may be subject to reasonable restrictions in the interests of society and the State.

Answer: A

Choose the correct option for each question

A. Both Assertion and Reason are true, and Reason correctly explains the Assertion.
B. Both Assertion and Reason are true, but Reason does not correctly explain the Assertion.
C. Assertion is true, but Reason is false.
D. Assertion is false, but Reason is true.

Assertion: The Right against Exploitation is concerned only with protecting adults from forced labour.

Reason: Constitutional protection against exploitation also extends to children in certain forms of employment.

Answer: D

Choose the correct option for each question

A. Both Assertion and Reason are true, and Reason correctly explains the Assertion.
B. Both Assertion and Reason are true, but Reason does not correctly explain the Assertion.
C. Assertion is true, but Reason is false.
D. Assertion is false, but Reason is true.

Assertion: The Right to Equality requires that every person must always be treated identically, regardless of their circumstances.

Reason: The constitutional concept of equality seeks to prevent unjust discrimination rather than requiring identical treatment in every situation.

Answer: D

Choose the correct option for each question

A. Both Assertion and Reason are true, and Reason correctly explains the Assertion.
B. Both Assertion and Reason are true, but Reason does not correctly explain the Assertion.
C. Assertion is true, but Reason is false.
D. Assertion is false, but Reason is true.

Assertion: Fundamental Duties and Fundamental Rights represent two completely opposing ideas because rights give citizens freedom while duties impose responsibilities on them.

Reason: A constitutional democracy seeks to balance individual freedom with responsible citizenship and the broader interests of society.

Answer: D

A foreign national has lived in India for the required period and fulfils the prescribed legal conditions. They wish to become an Indian citizen. Which method is most appropriate?

A. Birth
B. Naturalisation
C. Descent
D. Incorporation of Territory

Answer: B. Naturalisation

Match the Following

Method	**Description**
1. Birth.	a. Acquired through an Indian parent
2. Descent.	b. Acquired through a prescribed application by eligible persons
3. Registration	c . Acquired based on being born in India, subject to legal conditions
4. Naturalisation	d. Acquired by a foreign national after fulfilling prescribed conditions

A. 1-c, 2-a, 3-b, 4-d
B. 1-a, 2-c, 3-d, 4-b
C. 1-b, 2-d, 3-a, 4-c
D. 1-d, 2-b, 3-c, 4-a

Answer: A

Assertion: A person born outside India can potentially become an Indian citizen even though they were not born in India.
Reason: Citizenship by descent allows certain persons born outside India to acquire Indian citizenship through their Indian parent or parents, subject to prescribed conditions.

A. Both are true, and Reason correctly explains Assertion.
B. Both are true, but Reason does not correctly explain Assertion.
C. Assertion is true, but Reason is false.
D. Assertion is false, but Reason is true.

Answer: A

Consider the following statements:

Citizenship establishes a person's legal relationship with the State.
India follows the principle of single citizenship.
Every person residing in India automatically becomes an Indian citizen.
Parliament has the power to make laws relating to citizenship.
Which of the above statements are correct?
A. 1 and 2 only
B. 1, 2 and 4 only
C. 2 and 3 only
D. 1, 3 and 4 only

Answer: B

Prime Minister of India

- The President appoints the Prime Minister.
- The President normally appoints the person who commands the majority support in the Lok Sabha.
- Other ministers are appointed by the President on the advice of the Prime Minister.



Real Executive Head

leads and directs the day-to-day functioning of the Union Government.

Leader of the Council of Ministers

The PM heads the team of ministers who run different departments.

Advises the President

PM communicates and leads the advice of the Council of Ministers to the President.

Formulates government policies

The PM and Council of Ministers discuss matters such as policies, appointments, administration, etc.

How's PM elected ?

General elections are held → People vote to elect Members of the Lok Sabha.

A majority is formed → The political party or coalition with majority of Lok Sabha members chooses its leader.

President appoints the PM → The President formally appoints that person as the Prime Minister.

Council of Ministers is formed → The PM recommends other ministers, who are formally appointed by the President.

Simple example: Suppose Lok Sabha has 543 seats:
Party A wins 280 seats.
Party A's elected MPs choose their leader.
The President appoints that leader as Prime Minister.

People elect MPs → Majority in Lok Sabha determines the government → President appoints the Prime Minister.

If no party has a clear majority, the President appoints the person who is able to demonstrate majority support in the Lok Sabha.

President v/s Prime Minister

Constitutional/Formal Head	**Real Executive Head**
Represents the State	**Leads the Government**
Generally acts on ministerial advice	**Provides that leadership and advice through the Council of Ministers**
Head of State	**Head of Government**

Council of Ministers

The Council of Ministers is the group of ministers headed by the Prime Minister that runs the Union Government and assists and advises the President.

- Head: Prime Minister
- Members: Ministers handling different government departments.
- Appointment: The President appoints ministers on the advice of the Prime Minister.
- Main function: Formulates government policies and manages the administration of the country.
- Responsible to: Lok Sabha
- Collective responsibility: All ministers are expected to support government decisions as a team.

Council of Ministers	Cabinet
Larger body	Smaller body
Includes different categories of ministers	Mainly consists of Cabinet Ministers
Broad constitutional body	Core decision-making body
Assists the PM and advises the President	Takes major policy decisions

Assertion: Every Cabinet Minister is a member of the Council of Ministers, but every member of the Council of Ministers is not a Cabinet Minister.

Parliament of India

Parliament is the supreme legislative body of the Union Government.

Its main role is to make laws, discuss national issues, approve government spending, and hold the government accountable.

The Parliament consists of three components:

- President
- Lok Sabha
- Rajya Sabha

President

Constitutional part of Parliament

Lok Sabha

House of the People

Rajya Sabha

Council of States



Lok Sabha

- Meaning: House of the People
- Members: Directly elected by the people
- Current elected strength: 543 members
- Term: Normally 5 years, unless dissolved earlier
- Presiding Officer: Speaker of the Lok Sabha
- Government: The Council of Ministers is collectively responsible to the Lok Sabha
- Major role: Makes laws, discusses national issues, approves taxation and government spending, and holds the government accountable.
- Special importance: The Lok Sabha has greater power in financial matters, particularly with Money Bills.



Rajya Sabha

- Meaning: Council of States
- Members: Mainly elected indirectly by the elected members of State Legislative Assemblies.
- Maximum strength: 250 members
  - Current sanctioned strength: 245 members233 elected representatives
  - 12 nominated members
- Term: Members serve for 6 years.
- Retirement: About one-third of the members retire every two years.
- Permanent House: Rajya Sabha cannot be dissolved.
- Presiding Officer: Vice-President of India
- Role: Makes laws, discusses national issues, represents states, and scrutinises the work of the government.

Assertion (A): A Member of the Rajya Sabha can become the Prime Minister of India.
Reason (R): The Prime Minister must necessarily be a member of the Lok Sabha because the Council of Ministers is collectively responsible to the Lok Sabha.

Choose the correct option:
A. Both A and R are true, and R correctly explains A.
B. Both A and R are true, but R does not correctly explain A.
C. A is true, but R is false.
D. A is false, but R is true.

Answer: C

Why?
The PM can be a member of either the Lok Sabha or Rajya Sabha. However, the Council of Ministers must have the confidence of the Lok Sabha.

State Government

The State Government is responsible for governing and administering a particular state within India, such as Tamil Nadu, Kerala, or Karnataka.

- India has 28 States, each with its own State Government.
- State Governments function within the federal structure, sharing governmental powers with the Union Government.
- Each State has its own elected Legislative Assembly (Vidhan Sabha) to represent the people of the State.

Governor

Constitutional Head

Chief Minister

Real Executive Head

Council of Ministers

Assists and advises the Governor

State Legislature

Makes laws at the State level

Consider a hypothetical situation:

A person is a member of the Rajya Sabha and is appointed Prime Minister. The government enjoys majority support in the Lok Sabha.
A student argues:
"The appointment is unconstitutional because only a directly elected Lok Sabha member can head the Union Government."
Which is the most accurate response?

A. Correct, because the PM must always be directly elected by citizens
B. Correct, because Rajya Sabha members can become ministers but never PM
C. Incorrect, because only the President decides whether membership of Parliament is necessary
D. Incorrect, because a Rajya Sabha member can be PM, while the government must retain the confidence of the Lok Sabha

Answer: D

Consider the following:

1. The Cabinet is part of the Council of Ministers.
2. Every member of the Council of Ministers is necessarily a Cabinet Minister.
3. The Prime Minister heads the Council of Ministers.
4. The Cabinet plays a major role in important policy decisions.

Which combination is correct?

A. 1 and 2 only
B. 2 and 3 only
C. 1, 3 and 4 only
D. 1, 2, 3 and 4

Answer: C

Assertion (A): The High Court should not simply be described as a department of the State Government.
Reason (R): The judiciary is expected to function independently and can examine governmental action.

A. Both A and R are true, and R correctly explains A
B. Both A and R are true, but R does not explain A
C. A is true, but R is false
D. A is false, but R is true

Answer: A

Consider the following hypothetical situation:
A person who is a Rajya Sabha MP is appointed Prime Minister. The government commands a majority in Lok Sabha. Parliament subsequently passes a law. The constitutional validity of that law is challenged before the Supreme Court.

Which statement correctly identifies the constitutional relationships involved?

A. The PM's appointment is invalid because only Lok Sabha members can be PM; therefore, the law is automatically invalid.

B. The PM's Rajya Sabha membership does not by itself invalidate the appointment; the government must command Lok Sabha confidence, while the Supreme Court may independently examine the constitutional validity of the law.

C. Because the government has a Lok Sabha majority, no law passed during its tenure can be reviewed by the Supreme Court.

D. Since the PM belongs to Rajya Sabha, only Rajya Sabha can determine whether the law is constitutional.

Answer: B

Which statement is most accurate?

A. Parliament and Union Government are interchangeable terms
B. Cabinet and Council of Ministers are interchangeable in size and composition
C. Supreme Court and Parliament perform the same constitutional function
D. Parliament, executive government and judiciary perform distinct constitutional roles

Answer: D

Suppose a country guarantees several freedoms in its Constitution but provides no effective mechanism through which citizens can seek judicial protection when those freedoms are violated.
Which feature of the Indian constitutional framework would be particularly relevant to addressing this weakness?

A. Permanent character of Rajya Sabha
B. Constitutional Remedies
C. Collective responsibility
D. Bicameralism

Answer: B

A peaceful group criticises a government policy. An official argues:
“Citizens have duties towards the nation; therefore, Fundamental Duties allow the government to cancel Fundamental Rights whenever citizens criticise it.”

Which is the most constitutionally sound response based on the concepts studied?

A. Correct, because Duties are superior to Rights
B. Correct, because criticism is incompatible with constitutional government
C. Incorrect; Fundamental Duties do not simply extinguish Fundamental Rights
D. Correct, provided Rajya Sabha agrees

Answer: C

A citizen argues:
“The government was formed after winning elections. Therefore, any action taken by it must automatically be constitutional.”

Which combination of concepts most directly challenges this argument?

A. Electoral mandate + permanent Rajya Sabha
B. Constitutional supremacy + Fundamental Rights + judicial review
C. Fundamental Duties + Cabinet government
D. Bicameralism + State Legislature

Answer: B

A government authority unlawfully detains X. Another public authority refuses to perform a legal duty owed to Y. Meanwhile, Z occupies a public office despite a challenge to their legal authority to hold it.

Which sequence correctly identifies the relevant remedies?

A. X_Mandamus; Y_Habeas Corpus; Z_Certiorari
B. X_Habeas Corpus; Y_Mandamus; Z_Quo Warranto
C. X_Certiorari; Y_Prohibition; Z_Habeas Corpus
D. X_Quo Warranto; Y_Certiorari; Z_Mandamus

Answer: B

A minister states:

“Parliament passed this law by a clear majority. Therefore, asking the Supreme Court to examine its constitutionality amounts to asking the judiciary to conduct another election.”

What is the principal conceptual error?

A. Confusing judicial review with electoral representation
B. Confusing Rajya Sabha with Legislative Council
C. Confusing Cabinet with Council of Ministers
D. Confusing Fundamental Rights with Fundamental Duties

Answer: A

A person is detained. A petition is filed challenging the detention. Before the court decides the matter, the authority releases the person.

Which constitutional idea was originally at the heart of the challenge?

A. Whether a public office was legally occupied
B. Whether a public authority failed to perform an administrative duty
C. Protection of personal liberty against unlawful detention
D. Whether Parliament was properly constituted

Answer: C

Rahul is an Indian citizen. He voluntarily acquires the citizenship of another country. Which statement is most accurate under Indian citizenship law?

A. He can ordinarily retain both citizenships because India recognises unrestricted dual citizenship
B. His Indian citizenship ordinarily ceases upon voluntarily acquiring another country's citizenship
C. He remains an Indian citizen unless Parliament individually cancels his citizenship
D. His Indian citizenship continues automatically if his parents were born in India

Answer: B

A nominated Rajya Sabha member asks whether they can vote in the election of the President.
Which answer is correct?

A. Yes, because every member of Parliament participates
B. No, because nominated MPs do not participate in the Presidential Electoral College
C. Yes, but only if authorised by the Prime Minister
D. No, because Rajya Sabha has no role whatsoever in Presidential elections

Answer: B

Consider the following persons:

1. An elected Lok Sabha MP
2. A nominated Rajya Sabha MP
3. An elected Rajya Sabha MP
4. An elected MLA of Tamil Nadu
5. A nominated member of a State Legislative Assembly
6. An elected MLA of Delhi

Who among them can participate in the election of the President of India?

A. 1, 3, 4 and 6 only
B. 1, 2, 3, 4 and 6 only
C. 1, 3 and 4 only
D. 1, 2, 3, 4, 5 and 6

Answer: A

Person X is appointed Prime Minister while not currently being a member of either House of Parliament.
Which statement is correct?

A. X must become a Lok Sabha member within six months because the Council of Ministers is responsible to Lok Sabha.

B. X may remain outside Parliament for six months, after which X must have become a member of either House to continue as Minister.

C. X must become a member of either House before taking the oath as Prime Minister.

D. X can continue beyond six months without becoming an MP if the government retains a Lok Sabha majority.

Answer: B

Consider the following:

Statement I: Nominated Rajya Sabha members do not vote in the Presidential election.
Statement II: Nominated Rajya Sabha members can participate in the Vice-Presidential election.
Statement III: Elected State MLAs participate in both Presidential and Vice-Presidential elections.

Which option is correct?
A. I and II only
B. I and III only
C. II and III only
D. I, II and III

Answer: A

Party A has majority support in Lok Sabha. Its leader X, an elected Rajya Sabha MP, is appointed Prime Minister. Y is a nominated Rajya Sabha MP, while Z is an elected State MLA.
Later, elections are held separately for President and Vice-President.

Which statement is completely correct?

A. X can serve as PM; X and Y can vote in both elections; Z can vote only in the Presidential election.
B. X can serve as PM; X can vote in both elections; Y can vote only in the Vice-Presidential election; Z can vote in the Presidential election but not the Vice-Presidential election.
C. X can serve as PM only after entering Lok Sabha; Y can vote only in the Vice-Presidential election; Z can vote in both elections.
D. X can serve as PM; X and Y can vote in the Vice-Presidential election, but neither can vote in the Presidential election because only Lok Sabha MPs participate with MLAs.

Answer: B

Consider three persons born in India:

P: Born in 1985; neither parent was an Indian citizen.
Q: Born in 1995; one parent was an Indian citizen at the time of birth.
R: Born in 2006; one parent was an Indian citizen, while the other was an illegal migrant at the time of birth.
Ignoring special statutory exceptions, which statement is most accurate?

A. P, Q and R are all citizens by birth because place of birth alone determines Indian citizenship.
B. P and Q satisfy the respective birth-based rules applicable to their periods, but R does not satisfy the stated post-2004 condition.
C. Only Q is a citizen because citizenship by birth has always required at least one Indian parent.
D. Q and R are citizens because one Indian parent is sufficient for every person born after 1987.

Answer: B

Consider two applicants:

X has a qualifying connection to India that places X within a category eligible to apply for citizenship by registration.
Y is a foreign national seeking citizenship after satisfying the statutory conditions applicable to naturalisation.

Which conclusion is most accurate?

A. Both are applying through naturalisation because registration is merely the administrative procedure through which naturalisation occurs.
B. X and Y are using legally distinct modes of acquiring citizenship even though both involve an application rather than automatic acquisition merely by birth.
C. X acquires citizenship automatically because registration requires no application, whereas Y must apply.
D. Registration applies only to persons born in India, while naturalisation applies exclusively to persons born outside Asia.

Answer: B

Assertion (A): Merely being born in India does not necessarily make every person born today an Indian citizen.
Reason (R): The present law governing citizenship by birth considers not merely the place of birth but also specified conditions relating to the citizenship or migration status of the parents.

A. Both A and R are true, and R correctly explains A.
B. Both A and R are true, but R does not correctly explain A.
C. A is true, but R is false.
D. A is false, but R is true.

Answer: A

Statement I: The Preamble reflects important philosophical commitments of the Constitution.
Statement II: Every ideal contained in the Preamble operates exactly like an independently enforceable Fundamental Right.
Which is correct?

A. Both statements are correct, and II explains I.
B. Both statements are correct, but II does not explain I.
C. Statement I is correct, but Statement II is incorrect.
D. Statement I is incorrect, but Statement II is correct.

Answer: C

A law is enacted by a legislature with overwhelming majority support. It is subsequently challenged for violating a Fundamental Right.

Which statement is most constitutionally appropriate?

A. The size of the legislative majority determines whether judicial review is permissible.
B. Electoral legitimacy of the legislature does not by itself settle the constitutional validity of the law.
C. A Fundamental Right can invalidate legislation only when the government lacks majority support.
D. Judicial review is available only against executive decisions, not legislation.

Answer: B

Consider two situations:

X: A tribunal is about to proceed in a matter beyond its lawful jurisdiction.
Y: The tribunal has already passed an order beyond its jurisdiction and the order is sought to be quashed.

Which pairing is most appropriate?

A. X—Certiorari; Y—Prohibition
B. X—Mandamus; Y—Certiorari
C. X—Prohibition; Y—Certiorari
D. X—Prohibition; Y—Mandamus

Answer: C

Which statement most accurately describes the relationship between Fundamental Rights and Constitutional Remedies?

A. Remedies create all Fundamental Rights and therefore exist before the rights themselves.
B. Rights provide constitutional protections, while remedies provide mechanisms through which their enforcement can be sought.
C. Rights and remedies are constitutionally identical concepts expressed using different terminology.
D. Remedies become relevant only after Parliament agrees that a Fundamental Right has been violated.

Answer: B

Which statement correctly distinguishes the Presidential and Vice-Presidential electoral colleges?

A. Nominated MPs participate in both, while State MLAs participate only in the Presidential election.

B. Nominated MPs participate only in the Vice-Presidential election, while eligible elected MLAs participate only in the Presidential election.

C. Nominated MPs participate only in the Presidential election, while State MLAs participate in both.

D. Neither nominated MPs nor State MLAs participate in either election.

Answer: B

1. Rajya Sabha is a permanent House.
2. Individual Rajya Sabha members therefore hold office permanently.
3. Approximately one-third of its members retire periodically.
4. Its continuing existence does not make the Council of Ministers collectively responsible to it.

Which are correct?

A. 1, 2 and 3 only
B. 1, 3 and 4 only
C. 1, 2 and 4 only
D. 2, 3 and 4 only

Answer: B

Which of the following best explains why the Prime Minister is described as the real executive head?

A. Because the Prime Minister constitutionally replaces the President in all formal functions.
B. Because the Prime Minister heads the ministerial executive that directs governmental policy and administration, while the President is the constitutional head.
C. Because the Prime Minister can exercise executive power without the Council of Ministers.
D. Because every formal executive act must personally be performed by the Prime Minister.

Answer: B